Smt. Anubha Agrawalla vs Sri Abhishek Agrawalla on 18 March, 2024

Author: Vipin Chandra Dixit

Bench: Vipin Chandra Dixit

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HIGH COURT OF JUDICATURE AT ALLAHABAD



?Neutral Citation No. - 2024:AHC:48234

Court No. - 9


Case :- TRANSFER APPLICATION (CIVIL) No. - 69 of 2022


Applicant :- Smt. Anubha Agrawalla

Opposite Party :- Sri Abhishek Agrawalla

Counsel for Applicant :- Bhagwan Dutt Pandey,Sunita Verma

Counsel for Opposite Party :- Mahendra Pratap,Santosh Kumar Singh,Utkarsh Prakash Singh


Hon'ble Vipin Chandra Dixit,J.
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Heard Sri B.D. Pandey, learned counsel for the applicant and Sri Utkarsh Prakash Singh, learned counsel for the opposite party and perused the record.

This transfer application has been filed seeking transfer of Divorce Petition No. 109 of 2019 from Family Court, Gautam Buddh Nagar to Family Court, Lucknow.

It is submitted by learned counsel for the applicant that it is a matrimonial dispute between the parties. The applicant-wife is presently residing in district Lucknow along with three minor children. The applicant has no source of income and as such she moved an application under Section 24 of

Hindu Marriage Act claiming maintenance pedente lite and litigation expenses, which was allowed by Additional Principal Judge, Family Court, Gautam Buddh Nagar on 01.11.2021 awarding Rs. 5,000/- per month for maintenance and Rs. 1,000/- per date for litigation expenses but in spite of order of learned Family Court, maintenance as well as expenses has not been paid by opposite party. It is further submitted that there is no male member in the family of applicant except her old father aged about 70 years and as such she is facing great hardship to the attend the court proceedings at Gautam Buddh Nagar. District Gautam Buddh Nagar is much away from district Lucknow. Lastly, it is submitted that wife-applicant was threatened to life by opposite party when she went to Gautam Budh Nagar to attend the court proceedings.

On the other hand, learned counsel appearing on behalf of opposite party-husband submits that the opposite party has paid the maintenance as well as litigation expenses to the applicant regularly and since she is receiving maintenance and litigation expenses under Section 24 of Hindu Marriage Act, she can not claim transfer of divorce petition. Learned counsel for the opposite party has placed reliance on the judgement of this Court dated 23.03.2022 passed in Transfer Application (Civil) No.- 704 of 2021 that if the wife is receiving the amount of maintenance and litigation expenses under Section 24 of Hindu Marriage Act, she cannot claim transfer of her case. Relevant paragraph is quoted hereinunder-:

> "Once the applicant has moved application under Section 24 of Act, 1955, which was allowed and uninterrupted litigation expenses is paid to her, she cannot move transfer application on the ground of distance and financial stress. Similarly, in case the proceedings is at the verge of final hearing, any interference in transfer application would only delay the proceedings. Therefore, under such circumstances, no interference is warranted and transfer application is liable to be dismissed."

Learned counsel for the opposite party-husband does not dispute that the maintenance and litigation expenses was lastly paid on 13.07.2022 and thereafter maintenance and litigation expenses has not been paid to the applicant.

Considered the rival submissions of learned counsel for the parties.

Admittedly, the opposite party had not complied the order dated 01.11.2021 passed by Additional Principal Judge, Family Court, Gautam Buddh Nagar and the amount of maintenance @ Rs. 5,000/- and litigation expenses @ Rs. 1,000/- per date has not been paid to the applicant after 13.07.2022, whereas, in the aforesaid case the legal expenses were paid regularly to the wife, as such the law settled by this Court in Transfer Application (Civil) No. 704 of 2021 is not applicable in the present case. The applicant-wife is facing hardship in attending the court proceedings at district Gautam Buddh Nagar, which is much away from the place of residence of applicant and secondly her life is in danger at Gautam Budh Nagar.

In view of above, the transfer application filed by applicant is allowed. The Divorce Petition No.- 109 of 2019 (Sri Abhishek Agrawalla Vs. Smt. Anubha Agrawalla) is transferred from the court of Principal Judge, Family Court, Gautam Buddh Nagar to the court of Principal Judge, Family Court,

Lucknow.

Principal Judge, Family Court, Gautam Buddh Nagar is requested to transmit the record of Divorce Petition No.- 109 of 2019 immediately to the court of Principal Judge, Family Court, Lucknow.

Principal Judge, Family Court, Lucknow is also requested to conclude the proceedings and decide the divorce petition expeditiously after affording opportunity of hearing to parties concerned without granting undue adjournments to either of the parties within a period of four months from the date of receiving of record of divorce petition.

Order Date :- 18.3.2024 Virendra